

Multiple Choice (10 marks)

1. The president, vice-president, and U.S. civil officers can be impeached. Which of the following is not true about impeachment?
 - (a) Grounds include treason and bribery
 - (b) Grounds include high crimes and misdemeanors
 - (c) A majority vote in the House is necessary to invoke charges of impeachment
 - (d) A three-fourths vote in the Senate is necessary to convict and remove from office
2. With the intent to commit a felony therein.
 - (a) Contingent remainders
 - (b) Executory interests
 - (c) Vested remainders subject to open
 - (d) Reversions
3. What kind of damages put the nonbreaching party into as good a position as if the other party had fully performed?
 - (a) Nominal
 - (b) Punitive
 - (c) Rescission
 - (d) Compensatory
4. If certain fundamental rights are denied to some individuals but not others, then it is considered what type of problem?
 - (a) Substantive due process problem
 - (b) Equal protection problem
 - (c) Procedural due process problem
 - (d) None of these
5. Anderson and Parker decide to form a corporation which will locate missing children. Which of the following would be a proper name for the corporation?
 - (a) ANDERSON
 - (b) FBI Consultants, Incorporated
 - (c) Private Eye Partners
 - (d) Child Finder Company

True / False (10 marks)

Answer True or False

6. True or False: An F.O.B. contract specifies that the seller is responsible for delivering goods to a designated location, thus transferring risk at that point.
7. True or False: A plaintiff in a slander case does not need to prove special damages if the statement is not slander per se.
8. True or False: The privileges and immunities clause of the Fourteenth Amendment exclusively protects individual citizens, not corporations.
9. True or False: Under the enabling clause of the Fourteenth Amendment, a state can regulate state officials to prevent racial discrimination.
10. True or False: Regulations based on gender are generally reviewed under the intermediate scrutiny standard, not strict scrutiny.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the concept of the warranty of merchantability in the context of buyer protection. How can this legal principle be applied when a purchased item is found to be unfit and defective?
12. Discuss the constitutional implications of a defendant introducing evidence of good character in a securities fraud trial. How does this relate to the principles of due process and fairness in legal proceedings?

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